

HOUSE No. 4907

The Commonwealth of Massachusetts

PRESENTED BY:

John Barrett, III and Paul W. Mark

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the sale of nitrous oxide.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>John Barrett, III</i>	<i>1st Berkshire</i>	<i>12/18/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>12/18/2025</i>
<i>Susannah M. Whipps</i>	<i>2nd Franklin</i>	<i>1/8/2026</i>
<i>Mark C. Montigny</i>	<i>Second Bristol and Plymouth</i>	<i>1/7/2026</i>
<i>Steven S. Howitt</i>	<i>4th Bristol</i>	<i>1/8/2026</i>
<i>Christopher M. Markey</i>	<i>9th Bristol</i>	<i>1/8/2026</i>
<i>Bud L. Williams</i>	<i>11th Hampden</i>	<i>1/8/2026</i>
<i>Steven J. Ouellette</i>	<i>8th Bristol</i>	<i>1/27/2026</i>
<i>Tricia Farley-Bouvier</i>	<i>2nd Berkshire</i>	<i>1/28/2026</i>
<i>Carlos González</i>	<i>10th Hampden</i>	<i>1/29/2026</i>
<i>Nick Collins</i>	<i>First Suffolk</i>	<i>2/9/2026</i>

HOUSE No. 4907

By Representative Barrett of North Adams and Senator Mark, a joint petition (subject to Joint Rule 12) of John Barrett, III and Lindsay N. Sabadosa relative to the sale of nitrous oxide. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the sale of nitrous oxide.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Purpose

2 The purpose of this act is to protect the public health, safety, and welfare by restricting
3 the retail sale of nitrous oxide cartridges and canisters that are commonly misused for
4 recreational inhalation, while preserving access for legitimate culinary, medical, dental and
5 industrial uses.

6 SECTION 2. Definitions

7 For the purposes of this act:

8 (a) "Nitrous oxide product" means any steel cartridge, cylinder, canister, tank or container
9 filled with nitrous oxide, including but not limited to "whippets", "whip-it chargers", "cream
10 chargers", or any similarly packaged product.

(b) "Retail establishment" means any business engaged in the sale of goods directly to consumers, including smoke shops, vape shops, convenience stores, gas stations, and general retail outlets.

(c) "Authorized seller" means (1) a licensed culinary-supply retailer whose primary business is the sale of kitchen, baking, or food-service equipment; or (2) a licensed medical-supply or dental-supply distributor serving healthcare and dental professionals.

SECTION 3. Restrictions on Retail Sale

(a) No retail establishment other than an authorized seller shall sell, distribute, offer for sale, or possess for sale any nitrous oxide product.

(b) Authorized sellers may sell nitrous oxide products only to persons aged 21 or older, and only upon examination of a valid, government-issued photo identification.

(c) Nitrous oxide products shall not be openly displayed to the general public. Such products may only be provided upon direct request and kept behind the counter or in a non-public storage area.

SECTION 4. Prohibited Conduct.

(a) No person shall knowingly sell or distribute nitrous oxide for the purpose of human inhalation or recreational use.

(b) No person under 21 years of age shall purchase, attempt to purchase, possess, or knowingly transport any nitrous oxide product, except when required for legitimate educational or occupational purposes.

SECTION 5. Authorized sellers shall post a clearly visible sign stating: "Sale of Nitrous Oxide to Persons Under Age 21 is Prohibited by State Law. Recreational inhalation of nitrous oxide is dangerous and illegal."

SECTION 6. Recordkeeping Requirements

Authorized sellers shall maintain a record of each sale for a minimum of one year, including: (1) date of sale; (2) purchaser's name and date of birth, as verified by ID; (3) quantity sold. Records shall be made available for inspection by the Department of Public Health upon request.

SECTION 7. Enforcement and Penalty

(a) This act shall be enforced by the Department of Public Health, local boards of health, and municipal law-enforcement agencies.

(b) Violations shall result in the following civil penalties:

(i) a fine of up to \$300 for first offenders; (ii) a fine of up to \$500 for second offenders; (iii) a fine of up to \$1,000 for third and subsequent offenders, with the possibility of suspension or revocation of state or local retail licenses.

(c) Each day of continued violation constitutes a separate offense.

SECTION 8. Preemption

Nothing in this act shall prevent a municipality from adopting stricter local regulations governing nitrous oxide sales.